

Case	Title / Nature of Case
2:00 PM LINE 1	
23-CIV-01638	ETELVINA LUCH MARROQUIN DE CUTZAL VS. ALEXANDRA JOSEPHINE JAY, ET AL

ETELVINA LUCH MARROQUIN DE CUTZAL
ALEXANDRA JOSEPHINE JAY

DAVID F. MAKKABI
STEPHEN C. TOSCHI

DEFENDANTS' MOTION TO COMPEL PLAINTIFF TO PROVIDE AUTHORIZATION FOR THE RELEASE OF HER MEDICAL RECORDS TO DEFENDANT, OR IN THE ALTERNATIVE, TO COMPEL COMPLIANCE WITH SUBPOENA BY CUSTODIAN; REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING:

For the following reasons, Defendants Alexandra Josephine Jay, Michael Jay, and Val's Auto Upholstery's Motion to Compel Plaintiff Etelvina Luch Marroquin De Cutzal to Provide Authorization for Release of Medical Records from San Mateo Medical Center or, Alternatively, to Compel Compliance with Subpoena by Custodian of Records is **DENIED**. Defendants' request for monetary sanctions of \$1,020 and Plaintiff's request for monetary sanctions of \$1,600 are also **DENIED**.

This action arises from a motor vehicle collision occurring on May 12, 2021. Plaintiff alleges, among other injuries, injuries to her head, back, arm, knees, and chest, traumatic brain injury, blurry and double vision, memory problems, and depression. During discovery, Defendants obtained records indicating that Plaintiff had been involved in a prior motor vehicle collision on January 25, 2020, after which she complained of injuries involving some of the same areas and psychological or emotional symptoms. Plaintiff subsequently testified that her primary care physician, Dr. Monge, practiced at San Mateo Medical Center and that she had received treatment there both before and after the subject collision.

Defendants first seek an order compelling Plaintiff to execute an authorization permitting San Mateo Medical Center to release her medical records. The Court declines to grant that relief. Code of Civil Procedure section 1985.3, subdivision (c), permits a subpoenaing party seeking a consumer's personal records either to provide the witness with proof of compliance with the consumer-notice requirements of subdivision (b) **or** to furnish a written authorization signed by the consumer or the consumer's attorney. The statute does not require the consumer to execute an authorization. Nor does Code of Civil Procedure section 1987.1 expressly authorize the Court to compel a party to sign such an authorization; rather, it authorizes the Court to quash, modify, or direct compliance with a subpoena. *Miranda v. 21st Century Ins. Co.* (2004) 117 Cal.App.4th 913 does not hold otherwise. Although the trial court in *Miranda* ordered the plaintiff to sign medical authorizations in an uninsured-motorist arbitration proceeding, the Court of Appeal did not adjudicate the propriety of that procedure and instead questioned why the insurer had not pursued compliance with the subpoenas under section 1987.1. Accordingly, Defendants have not established a statutory basis for compelling Plaintiff to execute the requested authorization.

Defendants alternatively request an order compelling nonparty San Mateo Medical Center to comply with the subpoena. California Rules of Court, rule 3.1346 requires that the notice and moving papers supporting

a motion to compel production from a nonparty deponent be personally served on the nonparty unless the nonparty has agreed to accept service by mail or electronic service. The proofs of service reflect service on Plaintiff's counsel, but not on San Mateo Medical Center, and the record does not establish that San Mateo Medical Center agreed to accept service by another method. The Court therefore may not grant affirmative relief compelling the nonparty's compliance on the present motion.

Because these grounds are dispositive, the Court does not reach the parties' remaining arguments concerning timeliness, the scope of the subpoena, or the procedure that should govern any eventual production of medical records.

Both requests for monetary sanctions are **DENIED**. To the extent Code of Civil Procedure section 2025.480, subdivision (j) applies, the Court finds that other circumstances make the imposition of sanctions unjust, including the apparent relevance of at least some of the medical records sought and the fact that the motion is denied on procedural and statutory grounds rather than on a determination that the records are categorically undiscoverable. The Court likewise declines to award sanctions under Code of Civil Procedure section 1987.2, subdivision (a), and does not find that the motion was made or opposed in bad faith.

The Court further notes that Defendants' notice identifies an incorrect location for the hearing. Department 2 is located at the Northern Branch, Courtroom K, 1050 Mission Road, South San Francisco, California 94080, not in San Mateo. (Cal. Rules of Court, rule 3.1110(b)(1).)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

2:00 PM LINE 2

24-CIV-06967

CITY OF FOSTER CITY, ET AL VS. ELIZABETH KARNAZES, ET AL

CITY OF FOSTER CITY
ELIZABETH KARNAZES

BENJAMIN L. STOCK
PRO PER

MOTION TO QUASH SERVICE OF SUMMONS AND COMPLAINT, MEMORANDUM OF POINTS AND AUTHORITIES, AND DECLARATION OF ELIZABETH KARNAZES IN SUPPORT THEREOF

TENTATIVE RULING:

For the following reasons, the Motion to Quash is **DENIED**.

The Court has independently reviewed and considered all papers filed in support of and in opposition to the Motion to Quash, the evidentiary record, and the applicable legal authorities. The Court has also reviewed Judge Fineman's ruling addressing the Motion to Quash. Following its own independent review and analysis, the Court agrees with Judge Fineman's reasoning and conclusions and adopts that reasoning as its own. The Court has considered the arguments raised by the parties, including those not expressly discussed herein, and finds that none warrants a different result. Accordingly, for the reasons articulated in Judge Fineman's ruling and independently determined by this Court, the Motion to Quash is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.
